

21STCV02826 21STCV02826

County: los-angeles

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Case Number: 21STCV02826 Hearing Date: June 26, 2026 Dept: 207

TENTATIVE RULING – NO. 1

DEPARTMENT

207

HEARING DATE

June 26, 2026

CASE NUMBER

21STCV02826

MOTIONS

Motion for Protective Order

MOVING PARTY

Plaintiff Heather Vanian

OPPOSING PARTIES

Defendants Jonathan A. Hoenig, M.D. and Jonathan Hoenig, M.D. Surgery Center, LLC

MOTION

This case arises from allegations of medical malpractice in connection with facial plastic surgery. On January 22, 2021, Plaintiff Heather Vanian ("Plaintiff") filed suit against Defendants Jonathan A. Hoenig, M.D. and Jonathan Hoenig, M.D. Surgery Center, LLC ("Defendants") alleging a single cause of action for medical negligence.

Plaintiff now moves for a protective order to limit the forensic experts designated by Defendants on liability, causation, and damages. Defendants oppose the motion and Plaintiff replies.

ANALYSIS

I. Protective Order

Code of Civil Procedure section 2034.260 governs expert disclosures, and requires that the designation be accompanied by a declaration containing the following information:

- (1) A brief narrative statement of the qualifications of each expert.
- (2) A brief narrative statement of the general substance of the testimony that the expert is expected to give.
- (3) A representation that the expert has agreed to testify at the trial.
- (4) A representation that the expert will be sufficiently familiar with the pending action to submit to a meaningful oral deposition concerning the specific testimony, including an opinion and its basis, that the expert is expected to give at trial.
- (5) A statement of the expert's hourly and daily fee for providing deposition testimony and for consulting with the retaining attorney.

(Code Civ. Proc., § 2034.260, subd. (c).)

(a) A party who has been served with a demand to exchange information concerning expert trial witnesses may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. The protective order may include, but is not limited to, one or more of the following directions:

[...]

(6) That a party or a side reduce the list of employed or retained experts designated by that party or side under subdivision (b) of Section 2034.210.

(Code Civ. Proc., § 2034.250.)

Plaintiff moves pursuant to Code of Civil Procedure section 2034.210, subdivision (b)(6) and requests that the Court deem Defendant's expert designation non-compliant, and bar or limit the experts Defendants can call at trial. Specifically, Plaintiff

contends that the expert designation is devoid of information as to why two forensically retained liability experts are reasonable and necessary and not cumulative, seeks an order that Defendant can call either Dr. Kimberly Lee or Dr. Terry Dubrow, but not both, because the cost to depose both would be prohibitively expensive.

Indeed, the expert designations provide as follows:

Dr. Dubrow is a medical doctor specializing in plastic surgery and will testify as to standard of care, causation, and damages. His fee for deposition is \$2000/hour; his fee for review is \$650/hour.

Dr. Lee is a medical doctor specializing in Head and Neck surgery and will testify as to standard of care, causation, and damages. Her fees are as set forth in the attached Fee Schedule.

(Ex. 1 at Mayer Decl. ¶ 2.)

In opposition, Defendants argue that Plaintiff has not proven that the two experts are cumulative, because she has not yet taken their depositions. Further, Defendants cite to *People v. Carter* (1957) 48 Cal. 2d 737, 748-749, where the trial court erred in excluding the testimony of the physician who treated the defendant right after his suicide attempt, because even though the testimony was cumulative in terms of the content of the information, it was not cumulative in terms of its probative value to the jury.

Similarly, here, Defendants argue, having doctors in two separate specialties (plastic surgery and Head and Neck surgery) testifying that Defendants complied with the applicable standard of care will bring great weight to the jury.

However, Plaintiff, herself, intends to call two expert witnesses at trial. Thus, it would be inequitable for the Court to limit Defendants from similarly calling two expert witnesses.

Thus, the primary question is whether to limit Plaintiff's responsibility for the expert deposition fees. Plaintiff has requested, as an alternative, that the Court cap Plaintiff's responsibility at \$750 per hour, with Defendants responsible for the balance.

Defendants argue this \$750 figure is arbitrary and inequitable, given that Dr. Dubrow charges \$2,000 per hour and Dr. Lee charges \$3,100 per hour for the first four hours, meaning \$750 per hour would not even cover half of either of their hourly rates. Further, Plaintiff's own retained expert, John M. Shamoun, M.D., charges \$4,000 per hour for the first hour and \$2,000 for each subsequent hour. Even further, Defendants point out that if the Court were to limit Defendants to one expert, Plaintiff would potentially be obligated to pay \$3,100 per hour.

The Court agrees with Defendants that, should it grant Plaintiff's primary request for relief, and should Defendants choose Dr. Lee, Plaintiff would be responsible for paying \$3,100 per hour, although Plaintiff would likely only bear the costs of half of the deposition hours.

Notwithstanding, although Plaintiff asserts in the motion that she cannot afford to depose both of Defendants' experts, she has not provided any declaration or other proof of her inability to afford to depose both experts, or the limits of that affordability.

CONCLUSION AND ORDER

For the foregoing reasons, the Court denies Plaintiff's motion in its entirety.

Plaintiff shall provide notice of the Court's ruling and file the notice with proof of service forthwith.

DATED: June 26, 2026 ____/s/_____

Michael E. Whitaker

Judge of the Superior Court

TENTATIVE

RULING – NO. 2

DEPARTMENT

207

HEARING DATE

June

26, 2026

CASE NUMBER

21STCV02826

MOTION

Motion

for Leave to Amend Complaint

MOVING PARTIES

Plaintiff

Heather Vanian

OPPOSING PARTY

Defendants

Jonathan A. Hoenig and Jonathan Hoenig Surgery Center

MOTION

This case arises from

allegations of medical malpractice in connection with facial plastic

surgery. On January 22, 2021, Plaintiff

Heather Vanian ("Plaintiff") filed suit against Defendants Jonathan A. Hoenig,

M.D. and Jonathan Hoenig, M.D. Surgery Center, LLC ("Defendants") alleging a

single cause of action for medical negligence.

Plaintiff now moves for leave to file

a First Amended Complaint, adding a second cause of action for lack of informed

consent.[1] Defendants oppose the motion.

EVIDENTIARY

OBJECTIONS

The Court rules as follows with

respect to Defendant's evidentiary objections to the Declaration of David

Hoffman:

1. Overruled

2. Sustained

3. Sustained

4. Sustained

as to "Dr. Hoenig must have known this because he was the only surgeon." Otherwise, Overruled.

5. Overruled

LEGAL

STANDARD

Amendments

to Pleadings: General Provisions

Under Code of Civil Procedure

section 473, subdivision (a)(1), "The court may, in furtherance of justice, and

on any terms as may be proper, allow a party to amend any pleading or

proceeding by adding or striking out the name of any party, or by correcting a

mistake in the name of a party, or a mistake in any other respect; and may,

upon like terms, enlarge the time for answer or demurrer. The court may

likewise, in its discretion, after notice to the adverse party, allow, upon any

terms as may be just, an amendment to any pleading or proceeding in other

particulars; and may upon like terms allow an answer to be made after the time

limited by this code." (Code Civ. Proc.,

§ 473, subd. (a)(1).)

To wit, without notice to the other

party the Court has wide discretion to allow either party (i) to add or strike

the name of a party or (ii) to correct a mistake in the name of a party or a mistake in any other respect "in furtherance of justice" and "on any terms as may be proper." (See Code Civ. Proc., § 473, subd. (a)(1); see also *Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429.) Alternatively, after notice to the other party, the Court has wide discretion to allow either party to amend pleadings "upon any terms as may be just." (See Code Civ. Proc., § 473, subd. (a)(1).) Similarly, Code of Civil Procedure section 576 states "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."

(Code Civ. Proc., § 576.)

Judicial policy favors resolution of

all disputed matters between the parties and, therefore, leave to amend is

liberally granted. (*Berman vs. Bromberg* (1986) 56 Cal.App.4th 936, 945; *Hirsa*

v. Superior Court (1981) 118 Cal.App.3d 486, 488-489 [this has been an

established policy in California since 1901] (citing *Frost v. Whitter*

(1901) 132 Cal. 421, 424; *Thomas v. Bruza* (1957) 151 Cal.App.2d 150,

155).) The Court of Appeal in *Morgan v. Superior Court* held "If the

motion to amend is timely made and the granting of the motion will not

prejudice the opposing party, it is error to refuse permission to amend and

where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530, citations omitted.) Moreover, “it is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 [opposing party did not establish harm by the delay in moving to amend the complaint].)

“The court may grant leave to amend the pleadings at any stage of the action.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 6:636 (hereafter Weil & Brown).) Denial of a motion to amend is rarely justified if the motion is timely made and granting the motion will not prejudice the opposing party. (Id. at ¶ 6:639, citations omitted.) However, if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (Id. at ¶ 6:655, citations omitted.) Absent prejudice, any claimed delay alone is not grounds for denial. “If the delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if

sought as late as the time of trial. (Id. at ¶ 6:653 (citing Higgins

v. Del Faro (1981) 123 Cal.App.3d 558, 564-565).) “Prejudice exists where

the amendment would result in a delay of trial, along with loss of critical

evidence, added costs of preparation, increased burden of discovery, etc. . . .

But the fact that the amendment involves a change in legal theory which would

make admissible evidence damaging to the opposing party is not the kind of

prejudice the court will consider.” (Weil & Brown, supra, at

¶ 6:656, citations omitted.)

“Even if some prejudice is shown,

the judge may still permit the amendment but impose conditions, as the Court is

authorized to grant leave ‘on such terms as may be proper.’” (Weil &

Brown, supra, at ¶ 6:663, citation omitted.) For example, the court

may cause the party seeking the amendment to pay the costs and fees incurred in

preparing for trial. (Id. at ¶ 6:664 (citing Fuller v. Vista Del

Arroyo Hotel, 42 Cal.App.2d 400, 404).)

California

Rules of Court, rule 3.1324: Procedural Requirements

Pursuant to California Rules of

Court, rule 3.1324(a), a motion to amend a pleading before trial must:

“(1) Include a copy of the proposed amendment or

amended pleadings, which must be serially numbered to differentiate it from

previous pleadings or amendments;

(2) State what allegations in the previous

pleading are proposed to be deleted, if any, and where, by page, paragraph, and

line number, the deleted allegations are located; and

(3) State what allegations are proposed to be

added to the previous pleading, if any, and where, by page, paragraph, and line

number, the additional allegations are located.”

In addition, under Rule 3.1324(b), a

motion to amend a pleading before trial must be accompanied by a separate

declaration that specifies the following:

“(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended

allegations were discovered; and

(4) The reasons why the request for amendment was

not made earlier.”

DISCUSSION

In support of the motion, Plaintiff

advances the Declaration of David Hoffman, which provides:

2. Attached to this motion as Exhibit 1 is

a true correct copy of the proposed first amended complaint. Plaintiff

respectfully submits that there are sufficient facts (in evidence) for a trier

of fact to find that Dr. Hoenig did not elicit a bona fide informed

consent for deep plane facial plastic surgery before operating on Heather

Vanian. It could find he acted deceptively in his role as fiduciary.

3. [...] A true and correct copy of Dr. Hoenig's

further response to plaintiff's request for production of documents – set two,

is attached as Exhibit 2.

[...]

5. [. . .] As an offer of proof, Dr. Hoenig never

told Vanian before surgery that he was intending or doing a deep plane

anything. Vanian never heard that term until after her surgery. She was also

led to believe Dr. Hoenig was a triple board certified plastic surgeon. This

was covered in Vanian's deposition so there can be no claim of prejudice on

that score.

6. Plaintiff asked for the PowerPoint

presentation(s) that Hoenig used for his surgeries, including Vanian's, after

his deposition in 2024. These requests were periodically renewed and it

appeared there was good faith effort to comply. On May 26, 2026, Dr. Hoenig

produced four PowerPoints. Those slides were reasonably necessary to evaluate

an informed consent claim for trial. During the interval, we learned how few

deep plane plastic surgeries were done by Dr. Hoenig, who is an

ophthalmologist, not an ENT with plastic surgery qualifications or a plastic

surgeon. Plaintiff contends he palmed off as a plastic surgeon. Dr. Hoenig will

admit his website has been substantially revised since Vanian was his patient.

7. The only change in the FAC is the addition of

a single cause of action for "lack of informed consent" relating to the surgery

Dr. Hoenig performed, on November 20, 2019, and perforce, the surgery on August

15, 2020, for the explantation and revised mentalis. I know of no legally

tenable claim of prejudice that would result if this amendment is granted.

(Hoffman

Decl. ¶¶ 2-7, emphasis in original.)

The proposed First Amended Complaint

adds one cause of action for lack of informed consent. (Hoffman Decl.¶ 7.) It can therefore be reasonably inferred that

the amendment is necessary and proper to avoid forfeiture of this claim.

Plaintiff indicates that the new cause of action is based around the

same nucleus of facts as alleged in the original Complaint. (Motion, p. 2.) Plaintiff also asserts that the claim is

timely and supported by discovery conducted by Plaintiff, namely a PowerPoint

presentation produced by Defendant on May 26, 2026. (Hoffman Decl. ¶ 6.) The

presentations are alleged as having been

“reasonably necessary to evaluate an informed consent claim for trial.” (Hoffman

Decl. ¶ 6.)

Thus, the facts giving rise to the amendment were not discovered until

May 26, 2026, when Plaintiff produced the PowerPoint presentation that provides

the factual basis underlying the newly proposed claim (Hoffman Decl. ¶ 6). This also adequately explains why the motion,

which was filed June 12, 2026, was not filed earlier. While Defendants claim the amendment will

substantially prejudice them, the Court finds that the amendment was delayed due

to the Defendants' own delay in producing the relevant discovery materials previously

requested. Further, the Court does not

find the nature of the claim to require additional discovery, or prejudice Defendants

as both claims would be based on the same facts.

Leave to amend must be granted so long as Defendant is not misled or

prejudiced by the amendment. (Kittredge

Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 [opposing

party did not establish harm by the delay in moving to amend the

complaint].) It may constitute an

abuse of discretion not to permit the amendment of a complaint even at the

outset of a trial, where the amendment merely adds a new theory of recovery on

the same set of facts constituting the cause of action, and where additional

investigation and discovery are not required to meet the new issue. (Rainer v. Community Memorial Hospital (1971) 18 Cal.App.3d 240, 253.)

In Young v. Berry Equipment Rentals, 55 Cal.App.3d 35, 39 the court denied the request for leave to amend to drastically expand the scope of the case after a motion for new trial was granted. Similarly, in Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 488-489, the court denied the plaintiff's motion for leave to amend the complaint on the eve of trial in a manner that would require deposing additional witnesses who had not previously been identified.

Here, by contrast, trial has not yet commenced and Plaintiff's counsel has provided a satisfactory explanation as to why the legal theory was not brought sooner. The fact that the proposed amendment will change the complexion of the legal claims to be adjudicated at trial, that alone is insufficient to establish prejudice. "But the fact that the amendment involves a change in legal theory which would make admissible evidence damaging to the opposing party is not the kind of prejudice the court will consider." (Weil & Brown, supra, at ¶ 6:656, citations omitted.)

CONCLUSION AND ORDER

Finding the motion both procedurally and substantively proper, the Court grants Plaintiff's motion for leave to

amend the complaint. Plaintiff shall

file and serve the proposed First Amended Complaint on or before June 29,

2026.

On the Court's own motion, the Court

will permit the parties to reopen both non-expert and expert discovery for 30

days (starting from June 26, 2026) related to the Lack of Informed Consent claim

only, including, if necessary, the reopening/scheduling of depositions of

parties and expert witnesses immediately.

Further, the Court orders counsel for the parties to meet and confer today

(June 26, 2026), in person, to develop a discovery plan for additional

non-expert or expert discovery in advance of the trial, which will be continued

based upon the Court's impacted trial calendar.

The Court expects the parties to cooperate and complete whatever

additional discovery is needed forthwith.

Further, the Court will order that responses to written discovery, if

any, shall be served 5 calendar days after service instead of 30 days as

prescribed by statute.

Further, the Court will enter the

proposed Order lodged on June 12, 2026 in conformity with the ruling.

Plaintiff shall also provide notice

of the Court's ruling and file the notice with a proof of service forthwith.

DATED: June 26, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court

[1] The manner in which Plaintiff styled the motion is perplexing

– “PLAINTIFF HEATHER VANIAN'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT TO

CONFORM TO PROOF AT TRIAL.” As

such, Defendants are correct that the motion seems premature as captioned. But upon reviewing the points and authorities

advanced by Plaintiff, the Court finds that Plaintiff is seeking leave of court

to amend the complaint now, not during or after the presentation of evidence at

trial. Therefore, the Court will adhere

to the long-standing principle in equity to look to substance over form. (See, e.g., Carruth v. City of Madera (1965)

233 Cal.App.2d 688, 701 [equity will, when the circumstances justify, disregard

form and look to the substance if a forfeiture is threatened]; see also City

& County of San Francisco v. Muller (1960) 177 Cal.App.2d 600, 603 [“The

nature of a motion is determined by the nature of the relief sought, not by the

label attached to it. The law is not a mere game of words”].)